



SUPERIOR COURT
STATE OF CALIFORNIA
COUNTY OF SAN LUIS OBISPO
DEPARTMENT NINE

TANA L. COATES
JUDGE

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August 7, 2018

To All Litigants and Attorneys Practicing in Probate Court:

Based upon information gleaned from courts around the state, as well as the discretion provided to the court pursuant to Probate Code section 8571, and California Rules of Court, rule 7.201(b), this Court now intends to require all nonresident personal representatives to post bond, even if otherwise waived in a will or by heirs. A "nonresident personal representative" includes a nonresident at the time of appointment as personal representative, and any person who was a California resident at the time of appointment and later moves from California and resides outside the state.

The Court welcomes any comments or concerns, but intends to immediately implement this change.

Sincerely,

Tana L. Coates
Judge of the Superior Court

TLC:jn